Confidentiality and Limits of Confidentiality Agreement

[Practice Name] · Christian Belief Counseling · [Address] · [Phone] · [Email/Website]

Your counselor *(filled in by the practice)*

Counselor name: _____ State of practice: _____

License type & # (if applicable): _____

Supervisor name (if applicable): _____ Supervisor license #: _____

Client name: _____ Date of birth: _____

Trust is the cornerstone of counseling. This agreement explains how I protect your privacy, the few times the law or ethics require me to share information, and your rights. Please read it, initial where asked, and sign before our first session. We will go over it together, and you can ask questions at any time.

1. WHAT CONFIDENTIALITY MEANS

All interactions that take place in counseling are considered confidential. This includes phone calls and messages, scheduling notes, what you say in session, and my records and notes. I will not even confirm that you are my client unless you give me written permission. In almost all cases, I share information about you only when you give me written permission.

2. WHO CAN SEE YOUR RECORDS

Your records are seen by me [and by office staff who help with scheduling and billing, who are trained in and bound by the same privacy rules]. If I practice under supervision, my supervisor may also see them (see Section 3). No one else sees them unless you give written permission or one of the exceptions in Section 3 applies. If I keep separate personal session notes ("psychotherapy notes"), federal law (HIPAA) gives them extra protection, and they are not shared even with your insurance company without your separate written permission.

3. WHEN I MAY HAVE TO SHARE INFORMATION

These rules are based on the laws of the state of practice listed under “Your counselor” above, where I provide counseling. I will keep what you share private except in these situations. When I must share, I share only what is truly necessary and, whenever it is safe and possible, I will talk with you first.

- **Danger to yourself.** If I believe you are in serious and immediate danger of killing or seriously injuring yourself, I may contact your emergency contact, family members, or emergency services, or help arrange hospitalization, to keep you safe.
- **Danger to others.** If you threaten serious harm to another person, I may be required or permitted to warn that person, notify the police, or arrange hospitalization (often called the "duty to warn or protect"). [State] law sets the exact rules.
- **Abuse or neglect of a child.** If I learn of or suspect physical, sexual, or emotional abuse or neglect of anyone under 18, I must report it to child protective services. I do not have to be certain; reasonable suspicion is enough.
- **Abuse of an elder or dependent adult.** If I learn of or suspect abuse, neglect, or exploitation of an elder [age __ or older in [State]] or a disabled or dependent adult, I must report it to the state agency that handles these reports.
- **Court orders and subpoenas.** If a judge orders me to release records or to testify, I may have to comply. I will ask for your written consent first, or work to limit what is shared as narrowly as possible. I will not hand over records just because an attorney asks; I will talk with you, and with an attorney if needed, before responding to any subpoena.
- **Insurance billing.** If you use insurance, I share only the minimum needed to be paid: usually your name, dates of service, type of service, and diagnosis, and sometimes a treatment summary if your plan requires it. You authorize this in the financial section of your New Client Packet. If you pay in full yourself, you may ask me not to bill your insurance at all.
- **Consultation and supervision.** I may consult with other licensed professionals to give you the best care, without using your name or details that would identify you; they must also keep it confidential. If I practice under supervision, the supervisor named under “Your counselor” above may review your records and information as part of that supervision and is bound by the same confidentiality rules as I am.
- **Emergencies.** In a medical or mental-health emergency, I may share information that emergency responders need to help you.
- **Other legal requirements.** Rarely, other laws may require disclosure (for example, certain public-health reports, or if you file a complaint or lawsuit against me).

Talking about a past crime, when no one is in ongoing danger, generally does not require a report. If you are an adult being hurt by a partner or family member, I usually cannot report it without your permission [check [State] law], but we will make a safety plan together.

4. FAITH-INTEGRATED COUNSELING

Christian Belief Counseling may include prayer, Scripture, or conversation about faith, but only if you want it. You may ask for more, less, or none at any time, and you will be respected whatever your beliefs. I will not share anything about your counseling with your church, pastor, ministry leaders, or faith community, even if they referred you or help pay for counseling, unless you sign a written release.

5. COUPLES AND FAMILY COUNSELING

When I see a couple or family together, the couple or family is "the client." I cannot promise that other participants will keep what is said private. Records of joint sessions are released only with the written permission of every adult participant. Please choose one (every adult taking part signs at the end):

☐ No-secrets policy: something one person tells me privately may be brought into joint sessions if it is important to our work (I will first encourage you to share it yourself)

☐ Private information shared with me alone stays private unless it falls under Section 3

☐ Not applicable – individual counseling

[Brian: choose a default policy, or offer both options as shown.]

6. CHILDREN AND TEENS [IF APPLICABLE]

[If you counsel minors:] Parents or legal guardians generally have the right to information about their child's counseling [as allowed by [State] law and custody orders]. To help a child or teen feel safe enough to open up, I will usually share general progress rather than details, unless there is a safety concern. I need consent from a parent or guardian with legal authority to approve treatment; in joint custody, both parents' consent may be needed [check [State] law and the custody papers].

7. EMAIL, TEXT, PHONE, AND VIDEO SESSIONS

Email and text messages are convenient but not fully secure, and others may see them on your phone or computer. Please use them for scheduling only, not for personal or clinical details. Video sessions use a secure platform, but no technology is free of risk. Join from a private place, use your own device and a password-protected network (not public Wi-Fi), and do not record sessions. I do not provide counseling or crisis help by email or text.

You may contact me by: ☐ Phone call ☐ Voicemail ☐ Text ☐ Email ☐ Secure portal [if offered]

8. TECHNOLOGY AND AI-ASSISTED TOOLS

I keep records in secure electronic software. I may also use secure software that includes AI-assisted tools, for example to help draft notes or paperwork, only under appropriate privacy and security safeguards and written agreements (such as a HIPAA business associate agreement). I will not enter information that identifies you into any tool without those safeguards. I do not use AI to diagnose you or to respond to a crisis, and I review and remain responsible for anything a tool produces. You may ask what tools I use, and you may decline AI-assisted tools without any effect on your care.

My choice: ☐ AI-assisted note tools may be used as described ☐ Please do not use AI-assisted tools with my information

9. RECORDS AND HOW LONG THEY ARE KEPT

Your records are stored securely [encrypted electronic records / locked files]. I keep them for [__] years after our last session [for minors: __ years after the client turns 18, whichever is longer], as required by [State] rules, and then destroy them securely. If I become unable to practice, [Records Custodian name and contact] will safeguard your records and help you get a copy.

10. RELEASING INFORMATION WITH YOUR PERMISSION

Except as described in Section 3, I release information only with your signed written authorization (a Release of Information form) that states what will be shared, with whom, why, and when the permission ends. You may cancel it in writing at any time, except for information already shared. I share only the minimum necessary, and I remind the person who receives it that they may not pass it on without your consent.

11. YOUR RIGHTS

- See and get a copy of your records, usually within 30 days of your request (personal psychotherapy notes are an exception).
- Ask me to correct your records, or to contact you only in certain ways or at certain places.
- Ask me to limit what I share. If you pay in full yourself, I will not share that care with your insurer unless the law requires it.
- Receive a copy of my Notice of Privacy Practices, and be told if your information is ever breached.

- Make a complaint to me, to the [State Licensing Board name, phone, website], or to the U.S. Department of Health and Human Services, Office for Civil Rights (www.hhs.gov/ocr/complaints, 1-800-368-1019). You will never be penalized for making a complaint.

12. IF YOU ARE IN CRISIS

I am not a crisis service, and messages are not monitored after hours.

- Emergency or immediate danger: call 911 or go to the nearest emergency room.
- 988 Suicide & Crisis Lifeline: call or text 988, or chat at 988lifeline.org (free, 24/7; Veterans press 1).
- National Domestic Violence Hotline: 1-800-799-7233, or text START to 88788. Childhelp Child Abuse Hotline: 1-800-422-4453.
- [State] child abuse reporting line: [_____] [State] Adult Protective Services: [_____]

13. ACKNOWLEDGMENT AND SIGNATURES

Please initial each statement to show you understand it:

_____ **Safety.** My counselor may share information to protect me or someone else from serious harm.

_____ **Abuse reporting.** My counselor must report suspected abuse or neglect of a child, an elder, or a dependent adult.

_____ **Legal.** A court order or other law may require my counselor to release information.

_____ **Insurance.** If I use insurance, the minimum information needed for billing will be shared.

_____ **Consultation and supervision.** My counselor may consult with professionals without using my name, and a supervisor named above (if any) may review my information under the same confidentiality rules.

_____ **Electronic.** Email, text, and video have privacy risks, and I chose my contact methods above.

_____ **Technology.** I understand how secure software and AI-assisted tools may be used, and I made my choice above.

_____ **Faith community.** Nothing will be shared with my church or pastor without my written release.

I have read this agreement, have had the chance to ask questions, and understand the nature and limits of confidentiality. I agree to begin counseling with this understanding.

_____ _____

Client signature Date

_____

Printed name

_____ _____

Parent/guardian signature (if client is a minor) Date

_____

Printed name

_____ _____

Other adult participant (couples/family) Date

_____

Printed name

_____ _____

Counselor signature Date